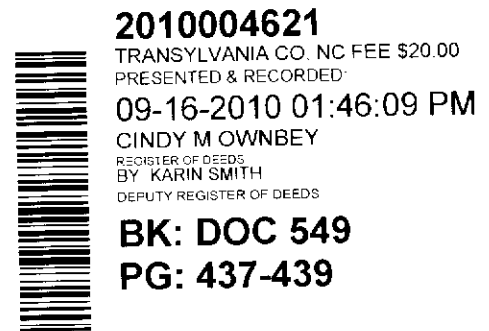




DECLARANT'S TERMINATION OF COVENANT

This Termination of Covenant is made as of September 10, 2010 by French Broad Place, LLC (FBP).

BACKGROUND:

A. On February 19, 2010, an instrument was recorded in Document Book 529, Page 410 of the Transylvania County Registry purporting to impose a Covenant upon certain Units in the French Broad Place Condominiums (the Instrument).

B. The Instrument was not authorized by FBP to be executed or recorded, and has never constituted a lawful restriction upon the property of FBP.

C. The Instrument in its Paragraph 25 provides a means of terminating the Instrument, and confirming that it is and will remain null and void.

TERMINATION:

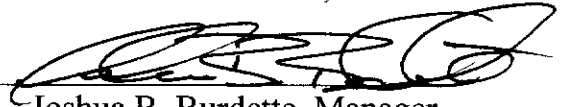
French Broad Place, LLC makes the following declarations under the oath of its Managers:

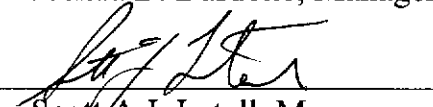
1. The Instrument shall be terminated and declared to be null and void, in the same manner as if it had never been recorded. This Termination is effective for all of the real property described in the Instrument, as described in the Exhibit A to the Instrument, and as described in Exhibit A to this Termination. All of the described units shall be referred to as the "Released Property".

2. The undersigned Managers of FBP swear and affirm upon personal knowledge that neither the Released Property, nor Declarant's Beneficial Interest, nor a Controlling Interest

in Declarant, has been sold, conveyed or assigned since the date of filing of the Declaration recorded in Document Book 529, Page 410 of the Transylvania County Registry.

FRENCH BROAD PLACE, LLC

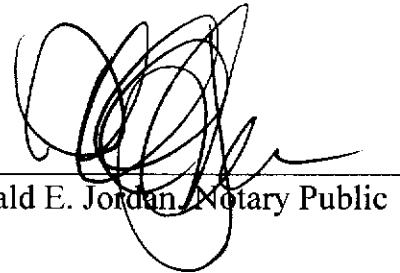
By: 
Joshua B. Burdette, Manager

By: 
Scott A.J. Latell, Manager

STATE OF NORTH CAROLINA
COUNTY OF TRANSYLVANIA

I, Donald E. Jordan, a notary public for the specified county and state, certify that Joshua B. Burdette and Scott A.J. Latell personally appeared before me this date and, being first duly sworn, executed and acknowledged this instrument as Managers on behalf of French Broad Place, LLC.

Dated: September 13, 2010


Donald E. Jordan, Notary Public

My commission expires: August 30, 2014

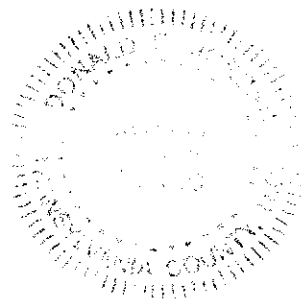


EXHIBIT A - LEGAL DESCRIPTION

The following Condominium Units of French Broad Place Condominiums:

Units 101-108

Units 201, 202, 203, 204, 206, 208, 209 & 210

Units 301-318

Units 401-418,

as described in the Declaration for the French Broad Place Condominiums recorded in Document Book 502, Page 593, Transylvania County Registry, and as shown on the Plats recorded in Plat File 13, Slides 139 to 144.

Together with each unit's respective undivided interest in the common areas and facilities of French Broad Place Condominiums, as set forth in the Declaration for the French Broad Place Condominiums.